

PLA 1104 Assignment #5

Professor Alexandria Rankin

Client Opinion Letter (Submission to Tutor Required)

To: Prospective Paralegal

From: Partner

Re: Commonwealth of Pennsylvania v. William Weasley, Case No.: 015-378; privileged communication

We have been retained to represent Fleur Delacour-Weasley in the above-referenced case. Her husband William is charged with assault with a deadly weapon. Mr. Weasley allegedly assaulted his neighbor, Joseph Markham, with a hammer. Mr. Weasley and Mr. Markham were arguing over the location of a fence Mr. Markham was building. According to Mr. Weasley, Mr. Markham became angry and attempted to hit him with a brick. A struggle ensued, and the brick fell and hit Mr. Markham on the head. Mr. Markham claims that Mr. Weasley became increasingly angry as the argument progressed; Mr. Weasley grabbed a hammer and struck him repeatedly on the head and arms. Mr. Markham claims he never assaulted Mr. Weasley with a brick. There were no witnesses to the argument.

Mrs. Delacour-Weasley is separated from Mr. Weasley and wants to testify against him. Her testimony is that before the confrontation, Mr. Weasley stated, “Markham is out there building that damn fence again. I’ll put a stop to this once and for all.” He grabbed a hammer and went out the door. The Weasleys’ children – Louis, age 10 and Dominique, age 5 – were present and heard the conversation. Neither Mrs. Delacour-Weasley nor the children saw the confrontation.

Draft an opinion letter to Mrs. Delacour-Weasley informing her whether she can testify against her husband in light of the applicable Pennsylvania statutory and case law provided to you.

The relevant statute governing privileged spousal communication is 42 Pa.C.S. § 5914 (2015). The relevant portion of this statute provides:

Except as otherwise provided in this subchapter, in a criminal proceeding neither husband nor wife shall be competent or permitted to testify to confidential communications made by one to the other, unless this privilege is waived upon the trial.

The relevant case law is *Commonwealth v. May*, 540 Pa. 237 (1995) and can be found on Lexis+.

Point Allocation:

Proper Format and Grammar (15 pts)	_____
Introduction (10 pts)	_____
Facts (10 pts)	_____
Answer (20 pts)	_____
Explanation (30 pts)	_____
Conclusion (5 pts)	_____
Submission to Tutor (10 pts)	_____
TOTAL (out of 100)	_____